STANDARD OPERATING PROCEDURE			G-5800
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/26/07	DATE REVISED **12/22/21**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES FOP CONTRACT			
SUBJECT PERFORMANCE EVALUATIONS	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to provide the guidelines for conducting performance evaluations for Sheriff's Office personnel.

II. Policy:

The Sarpy County Sheriff's Office shall maintain a system of Employee Job Performance Evaluations in order to provide feedback to employees regarding his or her performance, to assist employees in enhancing his or her performance and to assist in developing career paths. The performance evaluations shall assist the Sheriff in lateral transfers, promotional decisions, and as a means of improving work performance.

III. Definitions:

A. PERFORMANCE EVALUATION FILE (PEF): The Performance Evaluation File shall be a file maintained by the Sheriff's Office separate from an employee's Personnel File. The file shall only contain an employee's performance evaluation(s), performance improvement plan(s), performance memoranda, and any favorable department or community recognition less than two (2) years old.

IV. Procedures:

A. Evaluations shall be based upon the specific performance evaluation standards for each group and upon the job description for the employee's assigned position. A copy of all the performance evaluation standards shall be made available to all employees.

B. All supervisors and command officers shall receive training in the rating process as part of the required supervisor/command officer training.

C. Access to Evaluations: Performance evaluations shall be treated as confidential documents.

1. Performance evaluations shall be available to supervisors, command staff and the Sheriff.

2. Performance evaluations shall be made available to the Merit Commission only for purposes of impeachment during termination procedures.

3. Requests for access to evaluations shall be made to the Assistant Administrative Commander during normal business hours.

D. Frequency of Evaluation:

1. Non-sworn full-time employees not assigned to the Juvenile Justice Center, shall be evaluated once per year to be completed by March 15th.

2. The rating period comprises the time from the previous evaluation until the present evaluation due date unless the employee requests an additional evaluation.

3. An employee, who receives a negative performance evaluation, may request an updated evaluation after six (6) months have passed.

E. Evaluation Procedures: Prior to the due date for the evaluation, the supervisor shall complete a proposed evaluation.

1. In addition to a rating of “Exceeds Performance Standards”, “Meets Performance Standards” or “Fails to Meet Performance Standards”, the supervisor shall provide comments on all categories in which the employee exceeded or failed to meet performance standards. Comments must be based upon documentation contained in the employee’s performance file.

2. Any internal affairs or line investigation that is classified as Unfounded or Exonerated shall not be referred to in a performance evaluation.

3. Supervisors shall also note expectations for performance during the upcoming rating period.

F. Evaluation Interview:

1. The evaluating supervisor shall schedule a time and date for an interview with the employee.

2. At least one shift prior to the evaluation interview the supervisor shall provide the employee with a copy of his or her evaluation form to review.

3. At the evaluation interview, the supervisor shall present the original evaluation form to the employee for review, explain the evaluation and ratings, and discuss an improvement plan, if necessary.

4. The supervisor shall inquire as to the employee's career goals. The supervisor shall make recommendations regarding possible training and work opportunities to assist the employee in attaining his or her career goals.

5. The employee may advise the supervisor of participation in any training, education, or work experience relevant to the employee's next performance evaluation.

6. Supervisors may take into consideration all information presented by the employee and may make upward adjustments based upon new information. Any changes to the evaluation shall be initialed by the supervisor.

7. The employee shall have the right to add information and comments to any evaluation and to have the same attached to the evaluation. The employee's comments shall remain with the performance evaluation for the life of the evaluation.

G. Evaluation Due Dates:

1. Non-Sworn Full-Time Employees, not assigned to the Juvenile Justice Center:

a) After completing the proposed evaluation, the evaluating supervisor shall submit the evaluation and all attachments to his or her chain of command for review by January 30th but not prior to January 15th.

b) All evaluations shall be reviewed and signed by the appropriate division command officer(s) who may add commentary. After the chain of command review, the division commander shall return the evaluations to the appropriate supervisor by February 15th.

c) After the chain of command review, supervisors shall complete evaluation interviews and shall ensure the performance evaluations are signed by the employees; employees may add comments at this time. If during the evaluation interview, the employee provides the supervisor with information that results in changes to the evaluation, the supervisor shall initial those changes. The evaluating supervisors shall return the completed evaluations to his or her chain of command by February 28th.

d) The signed evaluations shall be submitted to the employee's chain of command for final review of the employee's comments, or any modifications made to the evaluation during the interview process. The division commander shall forward the evaluations to the Assistant Admin Commander by March 15th.

e) The Assistant Administrative Commander shall provide the evaluations to the Sheriff and Chief Deputy for review and shall place them in the performance evaluation files when the review is complete.

H. Contesting an Evaluation:

1. A non-sworn employee may file a grievance with the Sarpy County Personnel Board for the purpose of contesting an evaluation. This action must occur within ten (10) days of the employee signing the evaluation.

2. Any employee may simultaneously contest an evaluation by presenting a memorandum to his or her division commander within five (5) days of signing the evaluation. The memorandum shall contain the following information:

a) The exact portion of the evaluation being contested.
b) The exact inclusion or omission on the evaluation being contested.
c) The specific facts, including incidents and dates, supporting the contest of the evaluation.
d) The remedy which is sought.

3. If the disagreement cannot be resolved by the division commander within five (5) days (barring his or her absence from duty with leave), the performance evaluation form and all attachments shall be forwarded to the Sheriff, through the Chief Deputy, within forty-eight (48) hours of the division commander's decision.

4. The Sheriff shall make the final decision regarding the contents of the performance evaluation. The division commander, supervisor, and employee shall be advised, in writing, of the Sheriff's decision.

5. If the aggrieved employee is satisfied the situation has been resolved by his or her division commander or the Sheriff, he or she shall notify the Personnel Policy Board in writing of the resolution.

I. Disposition of Evaluations:

1. A copy of the completed performance evaluation, all attachments and commentary shall be returned to the employee and the original shall be retained in the employee's performance evaluation file for two (2) years.

2. The contents of the performance evaluation file shall be given to the employee for disposal at the end of each two (2) year evaluation period.

3. No copy or notation of such document shall be maintained or otherwise referred to in future evaluations. No performance evaluation over two (2) years old shall be maintained in any file, nor maintained by Sarpy County.

4. No performance evaluation over two (2) years old shall be used to show any type of behavioral or performance pattern.